

24STCV10430 24STCV10430

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 24STCV10430 Hearing Date: September 18, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

18, 2026

CASE NAME: Parviz

Okhovat, et al. v. Ashkan Naimian, et al.

CASE NO.: 24STCV10430

MOTION

TO ENFORCE SETTLEMENT

MOVING PARTY: Defendants

Ashkan Naimian and Assal Naimian aka Assal Hakamjani

RESPONDING PARTY(S): Plaintiffs Parviz Okhovat and

Nahid Okhovat

REQUESTED RELIEF:

1. An

order compelling Plaintiffs to perform the terms of the February 17, 2026 settlement agreement.

TENTATIVE RULING:

1. Motion

to enforce settlement agreement is DENIED without prejudice.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On April 25, 2024, Plaintiffs Parviz Okhovat and Nahid Okhovat (Plaintiffs) filed a verified complaint against Defendants Ashkan Naimian, Assal Naimian aka Assal Hakamjani, Sprout Mortgage, LLC, and All Persons Unknown, claiming any legal or equitable right, title estate, lien, or interest in the property described in the complaint adverse to Plaintiffs' title, or any cloud upon Plaintiffs' title thereto (Defendants) for: (1) quiet title – extinguishment of easement; (2) unreasonable use of easement; (3) breach of easement agreement; (4) negligence; (5) private nuisance; (6) private nuisance per se; (7) injunctive relief; and (8) declaratory relief.

According to the complaint, Plaintiffs own real property located at 15475 Duomo Via Street, Los Angeles, California 90077 and Defendants Ashkan and Assal Naimian own property located at 2780 Casiano Road, Los Angeles, California 90077 which is adjacent to Plaintiffs' property. Defendant Sprout Mortgage has an interest in Defendants' property. Plaintiffs allege that their predecessor-in-interest provided the Naimian's an express right of way easement on September 10, 1976 concerning a wall against the hillside. Plaintiffs allege that the Naimians' failure to maintain the wall caused Plaintiffs' property damage and inability to access their property.

On July 8, 2024, Plaintiffs filed a stipulation and proposed order to withdraw request for punitive damages and attorneys' fees without prejudice which the court GRANTED.

On July 18, 2024, Ashkan and Assal Naimian filed an answer.

On July 24, 2024, Ashkan and Assal Naimian filed an amended answer.

On July 29, 2024, Plaintiffs filed a first amended complaint (FAC).

On September 30, 2024, Ashkan Naimian and Assal Hakamjani

(erroneously sued as Assal Naimian) (the Naimians) filed an answer.

On October 14, 2025, the Naimians filed an ex parte application to continue trial and all related dates which the court GRANTED.

On February 17, 2026, the Naimians filed a notice of settlement agreement.

On July 30, 2026, the Naimians filed the instant motion to enforce settlement pursuant to CCP § 664.6. On September 4, 2026, Plaintiffs filed an opposition.[1]

On September 10, 2026, the Naimians filed a reply.

LEGAL STANDARD:

Under Code of Civil Procedure, section 664.6:

§ 664.6

(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

§ 664.6

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

§ 664.6

(1) The party.

(2) An attorney who represents the party.

(3) If the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's

behalf.

ANALYSIS:

The Naimians contend relief is proper because Plaintiffs do not have approval permits for the project and refuse to pay \$3,500 for a sump pump which is contemplated by the settlement agreement as an additional cost for the project of rebuilding the retaining wall.

Plaintiffs argue that they have reasonably progressed through the permitted procedures required by the City, the City does not require a sump pump system, such system would not cost only \$3,500, and the motion is premature as it bypasses the dispute-resolution procedure.

The Naimians reply that Section 13.2 does not apply to this disagreement because it did not arise during the construction or restoration of the wall, that section is permissive not mandatory, there is still not construction or timelines to complete the project, and request a status conference in one month to check on progress.

There is no dispute that a writing exists stipulating to the settlement and providing that the court retains jurisdiction under CCP § 664.6. (Declaration of Mark E. Capell, Exhibit 1 [Notice of Settlement Agreement and Settlement Agreement, Item 13.3(c).]) Thus, the court has jurisdiction to enter judgment as agreed by the parties.

The dispute turns on whether Plaintiffs are in breach. After reviewing the evidence submitted with the motion and the opposition, they are not.

Critically, the parties did not contemplate commencing construction until after Plaintiffs obtained all permits. The Agreement provides:

“Construction shall begin as soon as practicable and within 30 days of the payment provided for in Section 12.4 hereinbelow and within 45 days of all city approvals.” (Agreement, Section 11.1.)

“The Parties further recognize that the

construction timeline may reasonably extend due to inspections, weather conditions, permitting delays, expert availability, differing site conditions, or other matters outside the control of Plaintiff or Plaintiffs' contractor." (Agreement, Section 11.2.)

"Copies of all permits and approvals shall be provided to Defendant before work begins." (Agreement, Section 12.3.)

Read together, the parties agreed that Plaintiffs must obtain permits before commencing construction of the new wall. Next, Plaintiffs provided evidence they are diligently pursuing these permits. (Declaration of Alex Rahban ¶¶ 8, 10, 12, 13, 15, 16, 18, 20, 21, 25, 27, 29, 31, 32, 33.) This same evidence demonstrates Plaintiffs are not causing delay – the City permitting process is. What is more, the parties contemplated such delays in the "estimate" project timeline. (Agreement, Section 11.1 ["Construction shall begin as soon as practicable"]) As such, Plaintiffs are not in breach of the Agreement.[2]

Accordingly, the court DENIES the motion to enforce good faith settlement without prejudice.

The court will consider the alternative relief of setting status on progress to avoid unnecessary future motion practice.[3]

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to enforce settlement agreement is DENIED without prejudice.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 18, 2026 _____ Upinder S. Kalra

Judge

of the Superior Court

[1]

Plaintiffs also submitted evidentiary objections. However, the court declines to rule on them as they are immaterial to the court's ruling.

[2]

The court declines to develop the remaining arguments.

[3]The

court will note that on August 31, 2026 the City issued an approval letter.

(Dec. of Rahban, ¶ 3.)